

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Greg Finch	Team: Squad #07	CCRB Case #: 201506396	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 03/07/2015 12:53 AM	Location of Incident: 180 Nassau Street	18 Mo. SOL 9/7/2016	Precinct: 84
Date/Time CV Reported Mon, 07/27/2015 2:33 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Mon, 07/27/2015 2:33 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Feeley	02768	944550	077 PCT
2. POM Matthew Rosiello	20090	951180	077 PCT
3. POM Kenneth Anderson	20151	950001	077 PCT
4. POM Shaneil Mitchell	3666	950894	077 PCT
5. POM Stephen Minucci	7219	935326	077 PCT
6. SGT William Diab	00000	940125	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ruben Cespedes	03460	952567	077 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT William Diab	Abuse: Sergeant William Diab stopped § 87(2)(b)	A . Exonerated
B . SGT William Diab	Abuse: Sergeant William Diab stopped § 87(2)(b)	B . Exonerated
C . POM Stephen Minucci	Abuse: Police Officer Stephen Minucci stopped § 87(2)(b)	C . Exonerated
D . POM Stephen Minucci	Abuse: Police Officer Stephen Minucci stopped § 87(2)(b)	D . Exonerated
E . POM Shaneil Mitchell	Abuse: Police Officer Shaneil Mitchell stopped § 87(2)(b)	E . Exonerated
F . POM Shaneil Mitchell	Abuse: Police Officer Shaneil Mitchell stopped § 87(2)(b)	F . Exonerated
G . SGT William Diab	Force: Sergeant William Diab pointed his gun at § 87(2)(b)	G . Exonerated
H . SGT William Diab	Force: Sergeant William Diab pointed his gun at § 87(2)(b)	H . Exonerated
I . POM Stephen Minucci	Force: Police Officer Stephen Minucci pointed his gun at § 87(2)(b)	I . Exonerated
J . POM Stephen Minucci	Force: Police Officer Stephen Minucci pointed his gun at § 87(2)(b)	J . Exonerated
K . POM Shaneil Mitchell	Force: Police Officer Shaneil Mitchell pointed his gun at § 87(2)(b)	K . Exonerated
L . POM Shaneil Mitchell	Force: Police Officer Shaneil Mitchell pointed his gun at § 87(2)(b)	L . Exonerated
M . POM Kenneth Anderson	Force: Police Officer Kenneth Anderson pointed his gun at § 87(2)(b)	M . Exonerated

Officer(s)	Allegation	Inv. Div. Recommendation
N . POM Matthew Rosiello	Force: Police Officer Matthew Rosiello fired his gun at § 87(2)(b)	N . Exonerated
O . POM Brian Feeley	Force: Police Officer Brian Feeley fired his gun at § 87(2)(b)	O . Exonerated
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 27, 2015, § 87(2)(b) mailed a written complaint report from § 87(2)(b) to the CCRB.

On March 7, 2015, at approximately 12:52 a.m., § 87(2)(b) and § 87(2)(b) his friend, exited Amarachi Prime at 189 Bridge Street in Brooklyn, which is within the confines of the 84th Precinct. § 87(2)(b) and § 87(2)(b) walked north on Bridge Street and turned right onto Nassau Street. Responding to a tip of a man with a gun relayed by Police Officer Ruben Cespedes, Sergeant William Diab, Police Officer Stephen Minucci and Police Officer Shaniel Mitchell, all of the 77th Precinct, exited an unmarked patrol car and approached § 87(2)(b) and § 87(2)(b) (**Allegation A – Abuse of Authority: exonerated; Allegation B – Abuse of Authority: exonerated; Allegation C – Abuse of authority: exonerated; Allegation D – Abuse of Authority: exonerated; Allegation E – Abuse of Authority: exonerated; Allegation F – Abuse of authority: exonerated**). Sgt. Diab, PO Minucci and PO Mitchell pointed their weapons at § 87(2)(b) and § 87(2)(b) (**Allegation G – Force: exonerated; Allegation H – Force: exonerated; Allegation I – Force: exonerated; Allegation J – Force: exonerated; Allegation K – Force: exonerated; Allegation L – Force: exonerated**). § 87(2)(b) stopped on the sidewalk and § 87(2)(b) ran west on the south sidewalk of Nassau Street, towards Police Officer Matthew Rosiello, Police Officer Brian Feeley and Police Officer Kenneth Anderson, all of the 77th Precinct. PO Anderson pointed his weapon at § 87(2)(b) (**Allegation M – Force: exonerated**). PO Rosiello fired his gun at § 87(2)(b) (**Allegation N – Force: exonerated**). PO Feeley fired his gun three times at § 87(2)(b) (**Allegation O – Force: exonerated**).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b), § 87(2)(g), § 87(4-b)

IAB investigation log #15-5953 was conducted in regards to this incident (Board Review 20).

Surveillance camera footage captured part of this incident. The original footage can be found in IA#92 (Board Review 02) and the summary of the footage can be found in IA#106 (Board Review 21). A SnagIt copy has been placed below.

§ 87(2)(g)

Findings and Recommendations

Allegation A — Abuse of Authority: Sergeant William Diab stopped § 87(2)(b)

Allegation B — Abuse of Authority: Sergeant William Diab stopped § 87(2)(b)

Allegation C — Abuse of Authority: Police Officer Stephen Minucci stopped § 87(2)(b)

Allegation D — Abuse of Authority: Police Officer Stephen Minucci stopped § 87(2)(b)

Allegation E — Abuse of Authority: Police Officer Shaniel Mitchell stopped § 87(2)(b)

Allegation F — Abuse of Authority: Police Officer Shaniel Mitchell stopped § 87(2)(b)

Allegation G — Force: Sergeant William Diab pointed his gun at § 87(2)(b)

Allegation H — Force: Sergeant William Diab pointed his gun at § 87(2)(b)

Allegation I — Force: Police Officer Stephen Minucci pointed his gun at § 87(2)(b)

Allegation J — Force: Police Officer Stephen Minucci pointed his gun at § 87(2)(b)

Allegation K — Force: Police Officer Shaniel Mitchell pointed his gun at § 87(2)(b)

Allegation L — Force: Police Officer Shaneil Mitchell pointed his gun at § 87(2)(b)

Allegation M — Force: Police Officer Kenneth Anderson pointed his gun at § 87(2)(b)

Surveillance camera footage from 189 Bridge Street captures this section of the incident (Board Review 03).



SnagIt1.mp4

The SnagIt clip depicts 25 seconds of the incident and captures § 87(2)(b) and § 87(2)(b) being stopped by officers with their guns pointed, § 87(2)(b) running west on Nassau Street and a bullet entering a parked car.

It is undisputed that Sgt. Diab, PO Minucci, PO Mitchell and PO Anderson pointed their weapons at § 87(2)(b) during this incident.

§ 87(2)(b) said that all officers involved in this incident pointed their weapons at him (Board Review 04). § 87(2)(b) said that as he and § 87(2)(b) walked east on the south sidewalk of Nassau Street, two plainclothes male officers approached him with guns pointed and did not identify themselves as police officers nor issue any commands to § 87(2)(b) and § 87(2)(b). However, in § 87(2)(b)'s written complaint, he alleged that the officers “began hollering at him,” not that they were police but for § 87(2)(b) to come to them, which caused him to become frightened and he fled. In § 87(2)(b)'s written complaint, he said that a security guard “strongly observed” him inside of Amarachi Prime, but in his sworn statement said that he did not speak with anyone inside of the bar besides § 87(2)(b). When asked about the discrepancies between his sworn statement and original written statement, § 87(2)(b) said that the latter was incorrect.

§ 87(2)(b) was uncooperative with the investigation (Board Review 05).

Sgt. Diab said that he received a tip from Police Officer Ruben Cespedes, the Assistant FIO, that § 87(2)(b) § 87(2)(b) an auxiliary officer from the 77th Precinct who worked as a security guard in Amarachi Prime, observed a male with a firearm inside the club (Board Review 06). Sgt. Diab assembled a caravan of his 77th Precinct Anti-Crime team, which included PO Minucci and PO Mitchell, and the 77th Precinct Conditions team, which included PO Rosiello, PO Feeley and PO Anderson, to travel to Amarachi Prime. It took approximately 10 minutes to travel from the 77th Precinct stationhouse to the Amarachi Prime, located in the confines of the 84th Precinct. When the caravan arrived, the auxiliary officer called PO Mitchell and provided an updated description of two males, the taller with a firearm and the shorter holding a bag, and that the pair were about to leave the club. Sgt. Diab then observed § 87(2)(b) and § 87(2)(b) who matched the descriptions, exit Amarachi Prime, walk north on Bridge Street and turn right to walk east on the south sidewalk of Nassau Street. When § 87(2)(b) and § 87(2)(b) reached the midpoint of Nassau Street between Bridge Street and Gold Street, § 87(2)(b) turned left and “made” the front vehicle with Sgt. Diab, PO Minucci and PO Mitchell. The officers exited the vehicle with guns pointed at § 87(2)(b) and § 87(2)(b). The officers had their guns pointed for safety because, based on the tip, they believed that § 87(2)(b) was carrying a firearm. § 87(2)(b) dropped to the ground and lay prone on his stomach. § 87(2)(b) ran west on the south sidewalk of Nassau Street, toward the second car with PO Rosiello, PO Feeley and PO Anderson.

PO Minucci's, PO Mitchell's, PO Anderson's, PO Rosiello's, PO Feeley's and PO Cespedes' accounts of this incident were generally consistent with Sgt. Diab's account (Board

Review 07; Board Review 08; Board Review 09; Board Review 10; Board Review 11; Board Review 22). PO Mitchell did not recall if he pointed his weapon at § 87(2)(b) PO Anderson said that he pointed his weapon at § 87(2)(b) when he ran west on Nassau Street towards him, but did not fire because he lacked a clear line of sight.

An officer may stop and detain an individual if he or she has reasonable suspicion that the individual has committed, is committing, or is about to commit a crime (People v. DeBour, 40 N.Y.2d 210; 1976) (Board Review 19). Patrol Guide 221-01 states that an officer's decision to draw their firearm should be based on an articulable belief that the potential for serious physical injury is present (Board Review 12).

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B, C, D, E, F, G, H, I, J, K, L and M** be closed as **exonerated**.

Allegation N – Force: Police Officer Matthew Rosiello fired his gun at § 87(2)(b)

Allegation O – Force: Police Officer Brian Feeley fired his gun at § 87(2)(b)

Surveillance camera footage from 189 Bridge Street captures some of this section of the incident (Board Review 03).



SnagIt1.mp4

The SnagIt clip depicts 25 minutes of the incident and captures § 87(2)(b) and § 87(2)(b) being stopped by officers with their guns pointed, § 87(2)(b) running west on Nassau Street, § 87(2)(b) removing an unknown object from his waistband before exiting the frame, a bullet entering a parked car and PO Anderson running to relieve Sgt. Diab of placing § 87(2)(b) in custody.

It is undisputed that § 87(2)(b) ran west on Nassau Street after he and § 87(2)(b) were stopped by officers. It is undisputed that PO Rosiello and PO Feeley fired their weapons at § 87(2)(b)

§ 87(2)(b) denied having a firearm during this incident, and did not recall if he removed an object from his waistband. § 87(2)(b) viewed the surveillance footage video, and said that it did not depict him removing a gun from his waistband. § 87(2)(b) said that he ran west on the south sidewalk of Nassau Street in order to be in a more well-lit section of the street. § 87(2)(b) did not recall why he turned north and ran into Nassau Street. § 87(2)(b) denied running towards any officers, and did not see any officers farther west on the street. § 87(2)(b) said that he was paralyzed as a result of this incident.

PO Rosiello said that as § 87(2)(b) ran west on the sidewalk, he stood on the sidewalk blocking his path. § 87(2)(b) removed a gun from his waistband with his right hand, which caused PO Rosiello to fear for his safety. PO Rosiello said of § 87(2)(b)'s demeanor, "I don't think he realized we were there" and "I didn't know if he was going to try to throw it." PO

Rosiello drew and pointed his weapon at § 87(2)(b) and said, “Drop the gun, police, don’t move.” Ten feet from PO Rosiello’s position on the sidewalk, § 87(2)(b) turned right and ran north into Nassau Street between two parked cars. During this turn, § 87(2)(b) held the gun chest-level in a continuous running motion, and the gun’s direction passed PO Rosiello. § 87(2)(b) did not directly point the gun at PO Rosiello, but PO Rosiello did “see the barrel of the gun.” § 87(2)(b)’s hand raised and pointed into the street, towards where PO Rosiello believed PO Feeley was standing. PO Rosiello had last seen PO Feeley’s position in the car. When asked if he knew where PO Feeley was at this moment, PO Rosiello said, “No, I didn’t.” PO Rosiello fired one shot at § 87(2)(b) as he ran north into the street, between the sidewalk and the parked cars. PO Rosiello fired because he feared for his safety, and the safety of PO Feeley and PO Anderson. PO Rosiello explained that he feared for PO Feeley’s and PO Anderson’s safety because he “didn’t see them at any point, so he didn’t know if they were behind me or in the street still.” PO Feeley fired three shots at § 87(2)(b). PO Rosiello’s shot connected with § 87(2)(b) and one of PO Feeley’s bullets went into a parked car on Nassau Street, inside of which two people were sitting. PO Rosiello learned that approximately a year after this incident, § 87(2)(b) was arrested in the 77th Precinct for driving under the influence, and during this encounter § 87(2)(b) fled on foot from a vehicle stop.

PO Feeley’s, PO Anderson’s, Sgt. Diab’s, PO Mitchell’s, and PO Minucci’s accounts of this incident were generally consistent with PO Rosiello’s account. PO Feeley said that when § 87(2)(b) turned and ran north into Nassau Street, § 87(2)(b) raised a firearm in his right hand and pointed it in PO Feeley’s direction. PO Anderson said that neither he, nor PO Rosiello, nor PO Feeley issued § 87(2)(b) any commands as he ran west on Nassau Street.

§ 87(2)(a) CPL § 190.25(4)(a)

§ 87(2)(a) PHL § 18(6)

A silver firearm was vouchered in connection with this incident (Board Review 14). This firearm is visible on the ground in press reports about the shooting (Board Review 15). § 87(2)(g)

Patrol Guide Procedure 221-01 states that the use of deadly physical force can only be used to protect members of service and/or the public from imminent physical injury or death (Board Review 12).

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

Therefore, it is recommended that **Allegations N and O** be closed as **exonerated**.

§ 87(2)(g), § 87(4-b) [Redacted text block]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- Sgt. Diab has been a member-of-service for 12 years and has been a subject in 16 CCRB complaints and 34 allegations, of which three were substantiated:
 - #200800389 involved substantiated allegations of physical force and discourteous action against Sgt. Diab. The Board recommended Charges and the NYPD imposed a penalty of 35 vacation days.
 - #201507839 involved a substantiated allegation of a stop against Sgt. Diab. The Board recommended Formalized Training, and the NYPD has not yet imposed discipline.
- PO Rosiello has been a member-of-service for seven years and has been a subject in five CCRB complaints and seven allegations, none of which were substantiated. PO § 87(2)(g)
- PO Feeley has been a member-of-service for eleven years and has been a subject in seven CCRB complaints and 12 allegations, none of which were substantiated. § 87(2)(g)
- PO Anderson has been a member-of-service for seven years and has been a subject in two CCRB complaints and two allegations, none of which were substantiated. § 87(2)(g)
- PO Minucci has been a member-of-service for 14 years and has been a subject in two CCRB complaints and seven allegations, none of which were substantiated. PO § 87(2)(g)
- PO Mitchell has been a member-of-service for seven years and has been a subject in one CCRB complaint and two allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming severe physical injury, civil rights violations and emotional damages and seeking 25 million dollars (Board Review 16). As of September 5, 2018, no 50H hearing has been scheduled (Board Review 17).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date